

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. cxliv.]
Provisional Order Confirmation (South Molton Rural)
Act, 1930.



CHAPTER cxliv.

An Act to confirm a Provisional Order of the Minister of Health relating to South Molton Rural District. A.D. 1930.
[1st August 1930.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament: 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (South Molton Rural) Act 1930. Short title.

[Ch. cxliv.] *Ministry of Health* [20 & 21 GEO. 5.
Provisional Order Confirmation (South Molton Rural)
Act, 1930.

A.D. 1930.

SCHEDULE.

RURAL DISTRICT OF SOUTH MOLTON. .

*South Molton
Order.*

*Provisional Order dissolving the Chulmleigh Special
Drainage District.*

WHEREAS the Chulmleigh special drainage district in the parish of Chulmleigh in the county of Devon is comprised within the rural district of South Molton and by virtue of section 229 of the Public Health Act 1875 the special drainage district and that portion of the parish of Chulmleigh which is not comprised within the special drainage district are separate contributory places for the purposes of that Act;

And whereas the rural district council of South Molton have borrowed money for the execution of works for the benefit of the special drainage district and the money so borrowed is a separate charge on the special drainage district by virtue of the enactment above-mentioned;

And whereas the rural district council of South Molton have applied to the Minister of Health for the issue of a provisional order to dissolve the special drainage district and to merge it in the parish of Chulmleigh :

Now therefore the Minister of Health in pursuance of the powers given to him by section 270 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

Short title
and com-
mencement.

1. This order may be cited as the South Molton Order 1930 and shall come into operation on the first day of October nineteen hundred and thirty.

Interpreta-
tion.

2. In this order unless the context otherwise requires—

“ the appointed day ” means the first day of October nineteen hundred and thirty ;

“ the special drainage district ” means the special drainage district of Chulmleigh ;

“ the contributory places ” means the contributory places consisting of the special drainage district and that portion of the parish of Chulmleigh which is not comprised within the special drainage district ;

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. cxliv.]
Provisional Order Confirmation (South Molton Rural)
Act, 1930.

“ the parish ” means the parish of Chulmleigh ;

A.D. 1930.

“ the rural council ” means the rural district council of
South Molton.

—
South Molton
Order.

3. The special drainage district shall be dissolved and shall
be merged in the parish.

Dissolution of
special drainage
district.

4.—(1) So much of any sums borrowed by the rural council
as immediately before the appointed day are owing and charged
on the special rate of the special drainage district shall on the
appointed day by virtue of this order be charged on the special
rate of the parish.

Charge-
ability of
outstanding
debt and
expenses.

(2) Any expenses which immediately before the appointed
day are payable by the rural council as special expenses incurred
in respect of either of the contributory places shall on the appointed
day be payable by that council as special expenses incurred in
respect of the contributory place consisting of the parish :

Provided that nothing in this article shall affect the power
of the Minister of Health under section 29 of the Local Government
Act 1894 by order to direct special expenses to be raised in like
manner as general expenses or the application to special expenses
of the rural council of any provision of the Local Government
Act 1929 enabling that council to contribute to special expenses
from their fund available for general purposes.

5. All property held by the rural council on behalf of either
of the contributory places shall on the appointed day by virtue
of this order be held by the rural council on behalf of the
contributory place consisting of the parish.

Property of
rural council.

6. Nothing in this order shall affect the collection or recovery
of any local rate which may be outstanding immediately before
the appointed day.

Saving for
local rates.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses :
Adastral House, Kingsway, London, W.C.2; 120, George Street, Edinburgh;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
15, Donegall Square West, Belfast;
or through any Bookseller.

